

CCP section 396 does not authorize a state court to transfer a case to federal court. The statute applies only to misfiled matters within the California state court system and allows transfer to the correct California court. Federal removal is governed by 28 U.S.C. §§ 1441–1446, and only a defendant may remove a case. (*Progressive W. Ins. Co. v. Preciado* (9th Cir. 2007) 479 F.3d 1014, 1017 ["The removal statute ... is quite clear that only a 'defendant' may remove the action to federal court."].)

As Plaintiff identifies no cognizable authority for transferring this case to federal court, the motion is denied.

8. 9:00 AM CASE NUMBER: C25-00836
CASE NAME: MANUEL CARRASCO VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ENTRY OF PROTECTIVE ORDER**
FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Hearing continued to January 22, 2026, at 9am in Department 20. Service did not include the date, time and location of the motion as required by CCP 1010 and California Rules of Court, rule 3.1110(b).

9. 9:00 AM CASE NUMBER: C25-01488
CASE NAME: JACQUELINE NAMPEERA VS. CMG MORTGAGE, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CMG MORTGAGE, INC.

TENTATIVE RULING:

Introduction

Before the Court is Defendant CMG Mortgage, Inc.'s (CMG or Defendant) Motion To Compel Plaintiff Jacqueline Nampeera's individual claims to binding arbitration and stay this civil action until arbitration is complete. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

For the reasons described below, Defendant CMG Mortgage, Inc.'s Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

On May 28, 2025, Plaintiff filed the Complaint alleging thirteen causes of action based on discrimination, harassment, wrongful termination, and retaliation. (See Naran Decl., at ¶ 3.) This case is still in its infancy. No deadlines have passed, no court proceedings have occurred, and the instant motion constitutes Defendant's first substantive filing. The parties have not engaged in discovery or taken any other steps that could suggest an intent to waive Defendant's right to arbitrate the current dispute.

Factual Background